

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, May 21, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-01534	Mathew Carvalho vs Lucia Rocha
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Motion to Add Judgment Defendants Pursuant to CCP 187

Plaintiff's motion to add judgment defendants pursuant to Code of Civil Procedure section 187 is DENIED.

Plaintiff's request for judicial notice, filed April 15, 2026, is GRANTED.

Plaintiff's request for judicial notice, filed May 14, 2026, is GRANTED.

To prevail on the motion, the judgment creditor must show, by a preponderance of the evidence, that: "(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone." (*Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280.)

Here, the analysis stops at step 1. There is no evidence that the judgment debtor to be added, Deanna M. Carvalho Rocha, “had control of the underlying litigation and were virtually represented in that proceeding.” (*Highland, supra*, at p. 280.)

This is especially true where judgment was entered by default as it would result in a denial of due process of law. (See *Motores De Mexicali v. Superior Court* (1958) 51 Cal.2d 172, 176 [“To summarily add [individuals] to the judgment heretofore running only against [the corporation], without allowing them to litigate any questions beyond their relation to the allegedly alter ego corporation would patently violate this constitutional safeguard. . . . They were under no duty to appear and defend personally in that action, since no claim had been made against them personally.”]; see also *Wolf Metals Inc. v. Rand Pacific Sales, Inc.* (2016) 4 Cal.App.5th 698, 709 [“[Defendant] offered no defense to [Plaintiff’s], suit and the judgment against it was entered by default. Accordingly, the trial court erred in amending the default judgment to include appellants as judgment debtors on the basis of an ‘alter ego’ theory.”].)

Motores and *Wolf Metals* are not inapposite as argued by Plaintiff on reply. The facts here are similar to that in *Motores* and *Wolf Metals* in that the judgment debtor to be added was not named in the underlying lawsuit, and as judgment was entered by default had no opportunity to offer a defense. In short, Ms. Rocha’s interests were not represented in the underlying action. Providing an opposition to the instant motion does not cure this and is not equivalent to defending the underlying lawsuit on which the default judgment is based.

Accordingly, the motion is denied.

25CV-03544 Samir Soliman vs BSR Trucking Inc., et al.

Motion to be Relieved as Counsel

Appearance required.

Counsel for Ravi Gora are to appear to address the attorney declaration filed on April 22, 2026.

25CV-04165 Tamela Qualls vs Department of Motor Vehicles

Writ of Mandate

Appearance required.
